



POLICE DEPARTMENT

November 3, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-032721
Police Officer Lucia Gaynor	:	
Tax Registry No. 955148	:	
50 Precinct	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Timothy Marsh, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Craig Hayes, Esq.
Worth, London & Martinez, LLP
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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Lucia Gaynor, while on duty and assigned to the 50 Precinct, on or about and between October 26, 2024, and October 28, 2024, failed to properly complete a Domestic Incident Report.¹ (*As amended*)

P.G. 208-36, Paragraphs 2(a), 17

ARRESTS –
FAMILY OFFENSES/
DOMESTIC VIOLENCE

2. Said Police Officer Lucia Gaynor, while on duty and assigned to the 50 Precinct, on or about October 28, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer was wrongfully discourteous to a supervising officer.

A.G. 304-06, Paragraph 1

PROHIBITED CONDUCT

3. Said Police Officer Lucia Gaynor, while on duty and assigned to the 50 Precinct, on or about and between October 26, 2024, and October 28, 2024, failed to conduct a proper investigation. (*As amended*)

P.G. 208-36, Paragraphs 2(a), 17

ARRESTS –
FAMILY OFFENSES/
DOMESTIC VIOLENCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 1, 2025.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Phelim O'Rourke and Lieutenant Edward Dolan as witnesses. Respondent called Police Officer Luz Flores and testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find her Guilty of the charged

¹ At the outset, I note that Specification 1 stems from alleged misconduct for which Respondent was offered a Command Discipline. As is her right, Respondent refused the command level discipline, opting to have the allegations heard in the Trial Room. This tribunal is obligated to conduct a *de novo* review of the incident and may not take into account any prior settlement negotiations entered into by the parties.

misconduct and recommend the forfeiture of ten (10) vacation days and that Respondent attend training.

ANALYSIS

The charges in this matter stem from an allegation that Respondent was discourteous to her Sergeant when he instructed her to include required information on a Domestic Incident Report (“DIR”) and that she failed to conducting a proper investigation. The facts underlying this allegation are largely undisputed.

On October 26, 2024, Respondent and her partner, Police Officer Luz Flores, responded to a 911 call of a child custody dispute on Kingsbridge Avenue in the Bronx. Police Officer Flores was the operator and Respondent was the recorder. Respondent met [REDACTED] (“A.E.”), who was standing outside and alleged that her children’s father had taken them to his mother’s house without permission. After speaking to A.E., Respondent and her partner ascertained that there was no formal custody arrangement between the parties nor were there any orders prohibiting the children from being with their grandmother. In addition, A.E. did not allege that the children were in any danger. After speaking with A.E. for more than five minutes, Respondent rang the doorbell of the apartment where the children were and eventually the children’s father, [REDACTED] (“K.B.”), came downstairs and stepped outside.

The parties disagree about the tone of the conversation between A.E. and K.B., but it is undisputed that neither Respondent nor her partner spoke to K.B. alone to ascertain his version of events. Respondent failed to ask A.E. whether K.B. had access to a firearm or any of the

Domestic Incident Report (“DIR”) “lethality” questions.² Respondent began filling out the handwritten “scratch” draft of the DIR on the scene.

Two days later, the 50 Precinct Domestic Violence Sergeant, Phelim O’Rourke, approached Respondent with the scratch DIR in his hand. He asked her about her failure to check the “yes” or “no” box in the section of the form which asks about whether the subject has access to guns. The parties agree that an argument ensued between Respondent and Sergeant O’Rourke, after which he issued a Schedule A Command Discipline to Respondent for failure to properly complete the DIR. Respondent refused to accept the Command Discipline and the proposed penalty. (Tr. 35-40, 118-29, 144-57, 165-68; Dept. Ex. 1, *Domestic Incident Report*; Dept. Ex. 2A-B, *Respondent’s body-worn camera footage and transcript*)

Sergeant O’Rourke testified that on October 28, 2024, he reviewed the DIR and noted that it was incomplete. He stated that he was particularly concerned that the “access to guns” question was left blank. He explained that the Patrol Guide requires that question to be asked in every domestic call, whether a crime is alleged or not. Sergeant O’Rourke detailed that the command’s domestic violence officers conduct follow-up visits for every DIR and that this information is vital.

Sergeant O’ Rourke contended that a review of Respondent’s body-worn camera footage revealed that at no point during the interaction did Respondent or her partner ask A.E. whether the children’s father had access to a gun. Sergeant O’Rourke also alleged that despite being on

² The DIR contains the following lethality questions:

Has the suspect ever:	[t]hreatened to kill you or your children?
	[s]trangled or “choked” you?
	[b]eaten you while you were pregnant?
Is the suspect:	capable of killing you or children?
	violently and constantly jealous of you?
Has the physical violence increased in frequency or severity in the past 6 months?	

the scene for approximately fifteen minutes, Respondent also failed to ask the six “lethality” questions. However, he noted that answers to those questions were checked off on the form, with each marked “no.”

Sergeant O’Rourke also recounted that the DIR supporting deposition section, where a complainant writes their own version of events, had the word “refused” written through it. Sergeant O’Rourke explained that “because the victim and suspect party both provided their identification,” this incident would not qualify as a refusal to cooperate. In addition, he detailed that although the body-worn camera showed A.E. providing answers to questions about the relationship between the parties, including whether they have children in common, Respondent left those portions of the DIR blank. (Tr. 24-26, 30-40)

Sergeant O’ Rourke characterized the tone he used when directing her to finish the report as “calm.” He alleged that, “[Respondent] didn’t want to do the report and that she was going to make it a refusal.” (Tr. 42) According to Sergeant O’ Rourke, Respondent was instructed that the report could not be classified as a refusal because the parties were cooperative. He asserted that Respondent then “ripped” the DIR out of his hands, turned, and walked away. Sergeant O’Rourke admitted that he told Respondent to, “stop, we’re not done talking”, and then took back the DIR in the “same way she took it out of [my hand].” Following this interaction, Sergeant O’Rourke testified that he issued Respondent a Command Discipline for failure to properly prepare a domestic incident report. He described this as unusual because he does not routinely issue Command Disciplines for incomplete reports; however he did so in this instance because Respondent refused the opportunities he gave her to make corrections. (Tr. 41-46, 62-63, 68)

Lieutenant Dolan testified that in October of 2024, he served as the Integrity Control Officer (“ICO”) in the 50 Precinct. Lieutenant Dolan recalled that he became aware of the incident involving the DIR shortly after it occurred. He remembered Sergeant O’Rourke telling him that he was issuing Respondent a Command Discipline for failure to complete the report. According to Lieutenant Dolan, during that conversation, Sergeant O’Rourke also told him that Respondent “ripped [the DIR] out of his hands.” When asked why Respondent was not disciplined for discourtesy at the time, Lieutenant Dolan explained that it was addressed by issuing the Command Discipline. (Tr. 92-96, 97-99)

Respondent testified that on October 26, 2024, she and Police Officer Flores responded to the custody dispute 911 call. She recalled that A.E. wanted K.B. to bring the children outside so that she could take them home. Respondent stated that when K.B. came outside the parents were talking “back and forth.” According to Respondent, because she was the recorder, she began filling out the DIR while Police Officer Flores explained the civil nature of the dispute to the parties. Respondent acknowledged that she and her partner allowed the parents to continue speaking to one another without intervention. She opined that because the parties were simply “talking”, she was not concerned about the dispute escalating. Respondent explained that she “felt like they just needed to talk to each other.” She contended that after K.B. went back inside, A.E. became “very uncooperative and [she] walked away.” (Tr. 144-53, 165-68)

Respondent recalled that two days later, on October 28, 2024, Sergeant O’Rourke pointed out that she had not completed the access to guns question on the DIR. Respondent denied “grabbing” the form from him, maintaining that he handed her the form at the beginning of the conversation. Respondent remembered explaining to Sergeant O’Rourke that she had not asked the firearm question because A.E. was not cooperating. According to Respondent, Sergeant

O'Rourke told her to mark the access to firearms question "no." Respondent testified that she informed him that she could not do so because if she answered a question she did not ask, she would be "perjuring" herself. Respondent alleged that Sergeant O'Rourke got close to her, ordered her to "check the box anyway," and threatened her with a CD. Respondent claimed that after she again declined to do so, Sergeant O'Rourke "snatched" the DIR from her hand so "violently" that she "was checking for paper cuts after." (Tr. 153-57, 176)

Police Officer Flores took the stand and recounted explaining to A.E. that since there was no crime being alleged, the custody matter needed to be handled by Family Court. She acknowledged that when K.B. came outside the two parents began arguing. She maintained that the parties remained an arm's length away from one another and she did not intervene because the quarrel was not escalating. Police Officer Flores explained that she was letting them "vent" and that if the argument had escalated to a dangerous level, she would have separated the parents and called an additional unit to the scene. (Tr. 118-25)

Police Officer Flores explained that because the job involved family members, she and Respondent were required to complete a DIR. She recalled holding the portion of the form on which the complainant would write their version of events while Respondent began to fill out the identification section. Police Officer Flores recalled that shortly after K.B. returned inside, A.E. "took back her ID and walked away." Police Officer Flores acknowledged that there were several "lethality questions" required by the Patrol Guide that neither she nor Respondent asked A.E. She admitted that she marked "no" for those questions on the DIR, but could offer no explanation as to why she did so. In addition, Police Officer Flores testified that she was not reprimanded or disciplined in any way for her handling of this job. (Tr. 125-29, 132-34)

Specification 1 -Failure to Complete Domestic Incident Report
Specification 3- Failure to Conduct a Proper Investigation

Respondent stands charged with failing to ask required questions during a radio run about a possible custody dispute and failing to properly complete the DIR which documented the incident. Respondent is alleged to have neglected to ask the lethality questions listed on the DIR, as well as the access to guns question required by the Patrol Guide. As a result, Respondent was unable to record an answer to the firearms question and left other portions of the form incomplete or improperly filled out.

Patrol Guide 208-36 sets forth that, “uniformed members of the service responding to a report of a domestic violence incident will question persons present about the existence of firearms in the household.” In addition, members of the service responding to “any incident involving members of the same family/household” will “interview persons involved separately.”

In the instant matter a review of Respondent’s body-worn camera footage reveals that neither Respondent nor her partner asked A.E. or K.B. the required question regarding firearms or any of the questions about prior violence. In watching the recording, it was evident that for most of the encounter A.E. was cooperative and answered numerous questions about her children and her relationship with their father. There was ample time to ask these other important questions, particularly about whether K.B. had access to a gun, before he opened the door and came outside. The Department requires officers to ask questions about potential firearms because it recognizes that family offenses are often unpredictable and a very real possibility of danger to the parties and police exists.

Respondent argued that because she was the “recorder” it was her partner’s job, not hers, to ask questions. I disagree; Respondent was a police officer at all times during this interaction. If she observed her partner failing to make important safety-related inquiries, she was obligated

to do so herself. As a result of her failure to ask, Respondent had no idea if K.B. was armed as he came down the stairs and outside, potentially increasing the risk of danger to all parties present.

Once K.B. stepped outside, Respondent failed to separate him from A.E. and failed to ask him for his version of events or about the couple's history. Instead, she stood by as the two yelled at one another. Respondent and Police Officer Flores each testified that the couple was "talking" and that there was no need to separate them because there was no escalation. However, these self-serving versions of events were contradicted by the body-worn camera footage that clearly shows the parties arguing with increasing hostility. Instead of intervening or de-escalating, Respondent ignored the couple and filled in some sections of the DIR. By minimizing the intensity of altercation while on the stand, Respondent was attempting to deflect attention from her lackadaisical handling of the assignment. Fortunately for all of the parties involved, this interaction passed without incident

As a result of her casual attitude towards her duties, Respondent was unable to accurately complete the DIR. With regard to the access to firearms question, I agree with Respondent that it would be improper for her to answer "yes" or "no" to a question she did not ask. However, her inability to do so was a direct result of her failure to conduct a proper investigation, which includes the requirement of asking about access to guns. She also inexplicably failed to fill out information on the form which she had the answers to, specifically about the relationship between the parties.

Based on the foregoing, the Department has proven by a preponderance of the credible evidence that Respondent did not conduct a proper investigation of this incident and failed to adequately prepare the related DIR. Accordingly, I find Respondent Guilty of Specifications 1 and 3.

Specification 2- Discourtesy to a Supervisor

Respondent is also charged with being discourteous to Sergeant O'Rourke when she allegedly ripped the DIR from his hand after being instructed by him to make corrections to it.

Sergeant O'Rourke testified that Respondent became defensive when he asked her to make changes to the DIR, resulting in her grabbing the form out of his hand. He was forthright when he admitted that in his frustration, he took the form back from Respondent in the same manner she took it from him. I credit his statement that he mentioned the discourtesy to Lieutenant Dolan shortly after it happened; this was credibly corroborated by Lieutenant Dolan in his testimony. Sergeant O'Rourke further explained that he initially issued the Command Discipline³ for improperly filling out the DIR rather than discourtesy because, at the time, he was more concerned that the question of access to guns had been left blank than with Respondent's attitude when he confronted her about it.

On the other hand, Respondent's version of events appeared to be tailored to minimize her own culpability and paint herself as the victim of an obstinate supervisor who was trying to force her to lie. Both Respondent and Sergeant O'Rourke acknowledged that supervisors routinely ask subordinates to make changes to paperwork without incident. Taking that into consideration, it does not make sense that Sergeant O'Rourke would fly off the handle if Respondent was calmly trying to explain why she could not answer the access to firearms questions. The more likely scenario is that which Sergeant O'Rourke described— an exasperated Respondent arguing with him as he showed her the portions of the DIR that needed revisions,

³ At trial, there was a significant amount of testimony regarding the adjudication of the Command Discipline by the Commanding Officer. Respondent alleged that the meeting lasted over one hour, during which she was not permitted to speak. She claimed that the Commanding Officer then used profanity while telling her to sign the Command Discipline and get out. While concerning if true, this interaction, which occurred after all of the alleged misconduct in this case, is not relevant to the *de novo* review this tribunal is required to conduct.

culminating in her snatching it out of his hands in frustration and starting to walk away. I find that the preponderance of the credible evidence establishes that Respondent forcefully grabbed the DIR out of Sergeant O'Rourke's hands during this interaction.

The NYPD is a paramilitary organization. The structure exists, in part, to facilitate and improve operations, by making clear the rank structure. Supervisors review and are held responsible for the work of their subordinates. Although routine, addressing deficiencies in paperwork is a vital function of NYPD sergeants. It allows the supervisors to assess their subordinate's work and instructs the police officer about how to improve their performance in the future. In the instant matter, if Respondent felt that Sergeant O'Rourke was mistaken, she should have addressed him in a calm, professional manner. Neither a difference of opinion nor a misunderstanding excuse Respondent's behavior, which was discourteous, unprofessional, and completely inappropriate for the workplace. For the foregoing reasons, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 9, 2013, has been found guilty of discourtesy to her supervisor, as well as failing to conduct a proper investigation and

accurately complete the accompanying paperwork. The Department Advocate has recommended a total forfeiture of five (5) vacation days and that Respondent be sent for training.

Failure to conduct a proper investigation and improperly completed paperwork are both infractions which are usually addressed with the issuance of a Schedule "A" Command Discipline and the forfeiture of up to five (5) days. (Matrix, p. 52-53) In the instant matter, Respondent had ample opportunity to ask A.E. all of the "lethality questions" and make the required inquiry about access to firearms. These questions exist to help ensure the safety of domestic violence victims and police officers responding to these often volatile incidents. Respondent, who at the time of the incident had worked for the Department for 11 years, had received training about and had responded to domestic calls daily. There is no justification for Respondent's casual approach to investigating the radio run and the follow-up paperwork. As such, a penalty of five (5) vacation days each for Specifications 1 and 3, to run concurrently, is appropriate.

With regard to Specification 2, when Respondent ripped the DIR out of Sergeant O'Rourke's hands, while arguing with him about making changes to it, her behavior was unquestionably discourteous. The Department Advocate, citing the section of the Matrix, which addresses only discourtesy to a citizen by a police officer, has recommended Respondent forfeit five (5) vacation days. (Matrix, p. 29) However, this section, while providing guidance, is not squarely applicable to charges of a subordinate being discourteous to a supervisor, a situation which is not directly addressed by the Matrix. The penalty range for conduct prejudicial to the good order and efficiency of the Department includes a mitigated penalty of training through an aggravated penalty of termination. (Matrix, p. 46)

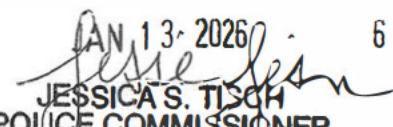
Under the specific circumstances of this case, a penalty must be fashioned that is fair and appropriate. On the one hand, it should be noted that Respondent has been a police officer for twelve years and has no prior disciplinary history. On the other hand, even on the stand, Respondent failed to acknowledge how she might have handled the situation better or take any responsibility with regard to the charges against her. On balance, a penalty of the loss of five (5) vacation days, to run consecutively with the penalties for Specifications 1 and 3, is suitable to address Respondent's behavior in this matter. Accordingly, I recommend that Respondent forfeit a total of ten (10) vacation days. In addition, it is my opinion that Respondent would benefit from training on responding to and documenting domestic incidents.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

JAN 13 2026 6

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER LUCIA GAYNOR
TAX REGISTRY NO. 955148
DISCIPLINARY CASE NO. C-032721

Respondent was appointed to the Department on July 9, 2013. On her three most recent annual performance evaluations, she was twice rated “Exceeds Expectations” for 2022 and 2023, and “Meets Standards” for 2021.

Respondent has no formal disciplinary history.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials